

HON'BLE Dr.JUSTICE CHILLAKUR SUMALATHA

CRIMINAL PETITION No.1826 of 2023

ORDER:

1. Seeking pre-arrest bail, the present Criminal Petition is filed under Section 438 Cr.P.C. on behalf of the petitioner, who is arrayed as Accused in Crime No.107 of 2023 of Jubilee Hills Police Station, Hyderabad.

2. Heard Sri Srinath Reddy, learned counsel representing Sri Nageshwar Rao Pujari, learned counsel on record for the petitioner as well as the learned Additional Public Prosecutor who is representing the Respondent-State.

3. Stating that the petitioner is innocent and the defacto complainant foisted a false case against the petitioner, learned counsel states that at any cost, Section 376 IPC does not come into play in the light of the fact that there is consensual sexual intercourse between the parties i.e., the petitioner herein and the defacto complainant. Learned counsel also submits that the deception, if any, should be from the initial stage and only because due to subsequent events, one party could not come forward for the marriage,

it cannot be termed that the physical relationship amounts to rape, learned counsel for the petitioner relied upon the decision of the Hon'ble Apex Court in the case between **Pramod Suryabhan Pawar Vs. The State of Maharashtra & Anr.**¹ wherein , the Court at Para 18 of the order held as follows:-

“18. To summarise the legal position that emerges from the above cases, the “consent” of a woman with respect to Section 375 must involve an active and reasoned deliberation towards the proposed act. To establish whether the “consent” was vitiated by a “misconception of fact” arising out of a promise to marry, two propositions must be established. The promise of marriage must have been a false promise, given in bad faith and with no intention of being adhered to at the time it was given. The false promise itself must be of immediate relevance, or bear a direct nexus to the woman’s decision to engage in the sexual act.”

4. On the same proposition, learned counsel also relied upon the decision of the High Court of Orissa at Cuttack in the case between **Santosh Kumar Nayak Vs.State of Odisha**²

¹ CrI.A.No.1165 of 2019, dt.21.08.2019

² BLAPL. No.2818 of 2021

5. Stating that the petitioner is not entitled for anticipatory bail, learned Additional Public Prosecutor, on the other hand, contends that the case is still under investigation.

6. The matrix of the case as could be perceived through the contents of the complaint is that the defacto complainant met the petitioner while she was staying at Hostel and was attending her job. They both started talking to each other. The petitioner promised to marry the defacto complainant. The defacto complainant introduced her parents to the petitioner. She also spoke to the mother of the petitioner several times. When the defacto complainant started believing the petitioner, he proceeded with the physical relationship several times. But, he postponed the proposal of marriage. Finally, the defacto complainant came to know that she was cheated.

7. The contention of the learned counsel for the petitioner is that the case facts will not fall within the ambit of Section 376 IPC. Stating that the defacto complainant is habituated in giving false complaints that her modesty was outraged, learned counsel for the

petitioner stated that the defacto complainant earlier gave complaint to Kamareddy Police that one person, by name M.Shiva, outraged her modesty. Learned counsel states that in that regard, a case was registered in Crime No.175 of 2022 of Kamareddy Poilce Station and charge sheet was also laid. Learned counsel also states that the defacto complainant gave another complaint to Delhi police against another person that the said person committed rape. Learned counsel finally states that protection from arbitrary arrest has to be issued as the complaint given by the defacto complainant is false.

8. The submission of the learned Additional Public Prosecutor, as earlier indicated, is that the investigation is still pending. Therefore, the merits of the case cannot be discussed. Taking into account the contents of the complaint, it appears that with an understanding to proceed for marriage, the parties maintained physical relationship.

9. Therefore, this Court is of the view that the request of the petitioner can be honoured, however, conditionally.

10. In the result, the Criminal Petition is allowed with the following conditions:

- (i) The petitioner/Accused is directed to surrender before the concerned Court within ten (10) days. On such surrender, he shall be enlarged on bail on his executing a personal bond for Rs.50,000/- (Rupees Fifty Thousand only) with two sureties for like-sum each to the satisfaction of the Court concerned. The sureties are directed to submit their two latest passport size photographs at the time of furnishing solvency. One such photograph is ordered to be pasted in the Surety Register against the name of the surety. The other photograph shall be kept in the case record concerned.
- (ii) The petitioner/Accused shall report before the Station House Officer, Jubilee Hills Police Station, on every Monday between 10.30 A.M. and 12:00 P.M. till filing of final report.
- (iii) The petitioner/Accused should not involve in any unlawful activity.
- (iv) The petitioner/Accused should afford all assistance for the proper investigation of the case.

- (v) The petitioner/Accused should not cause the evidence of the offence disappear.
- (vi) The petitioner/Accused should not tamper with the evidence in any manner.
- (vii) The petitioner/Accused should not by way of inducement, threat or promise, dissuade any person who is acquainted with the facts of the case, from disclosing such facts to the Court or to the Police Officer.
- (viii) In case the petitioner/Accused holds a passport, he shall surrender the same.
- (ix) The petitioner/Accused should ensure his presence whenever required by the Court or Police.
- (x) The petitioner/Accused shall not leave India without previous permission of the Court concerned.
- (xi) The petitioner/Accused shall file an affidavit before the Court concerned disclosing the following particulars:-
 - (1) Contact number
 - (2) Mail address
 - (3) Residential particulars.

In case, there is any change of the aforementioned details, the petitioner shall intimate the Court concerned by giving a fresh affidavit duly

mentioning the change. He shall continue to do so till filing of the final report.

Any deviation of the above conditions would entitle the respondent to take appropriate steps for cancellation of the pre-arrest bail granted.

Dr. JUSTICE CHILLAKUR SUMALATHA

Date:03.03.2023

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